

In the 7th schedule of the Constitution, in state list entry 46 taxes on agricultural income in being listed. In Article 274 of the Constitution, the provision is stipulated for taxation of agricultural income in which the State is interested.

53. Main agency to resolve the fiscal disputes between the Centre and States is –

- (a) Supreme Court
- (b) Law Minister
- (c) Finance Minister
- (d) Finance Commission

U.P.C.S. (Pre) 1995

Ans. (a)

Supreme Court is the main agency to resolves the fiscal disputes between the centre and the states. Supreme Court deals with the above matter under Article 131 of the constitution of India. The finance commission core responsibility is to recommend the sharing of taxes between the centre and states.

54. Under which of the following taxes the total amount payable by an individual is limited by the Constitution?

- (a) Corporation tax
- (b) Estate Duty
- (c) Succession Duty
- (d) Tax on profession, trade, and callings

U.P.C.S. (Mains) 2004

U.P.C.S. (Mains) 2002

Ans. (d)

Article 276 (2) of the Constitution specifies that the total amount payable in respect of any person to the State or to any municipality, district board, local board or other local authority in the State by way of taxes on professions, trades, callings and employments shall not exceed two thousand and five hundred rupees (Rs. 2,500) per annum after 60th Amendment Act, 1988 in place of Rs. 250.

55. Freedom of inter-state trade and commerce has been regulated by the Indian Constitution under Article:

- (a) 19(1)(d-e)
- (b) 301
- (c) 301 to 307
- (d) All of the above

U.P.C.S. (Pre) 1999

Ans. (b)

Subject to the other provisions of part XIII as per Article 301 of the Constitution, trade, commerce and intercourse throughout the territory of India shall be free.

56. Article 300 of the Indian Constitution deals with

- (a) suits and proceedings
- (b) government contracts
- (c) Attorney General
- (d) restrictions on trade and commerce
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre), 2022

Ans. (a)

Article 300 of the Indian Constitution deals with the Suits and Proceedings of the Union Government. As per Article 300 suits and proceedings are defined–

- The Governor of India may sue or be sued by the name of the Union and the Government of a State may sue or be sued by the name of the State and may, subject to any provisions which may be made by Act of Parliament or of the Legislature of such State enacted by virtue of powers conferred by this Constitution, sue or be sued in relation to their respective affairs in the like cases as the Dominion of India and the corresponding Provinces or the corresponding Indian States might have sued or been sued if this Constitution had not been enacted.
- If at the commencement of this Constitution–
 - (a) any legal proceedings are pending to which the Dominion of India is a party, the Union of India shall be deemed to be substituted for the Dominion in those proceedings; and
 - (b) any legal proceedings are pending to which a Province or an Indian State is a party, the corresponding State shall be deemed to be substituted for the Province or the Indian State in those proceedings.

Emergency Provisions

*The Emergency provisions are contained in part XVIII of the Constitution from Articles **352 to 360**. These provisions enable the Central Government to meet any abnormal situations effectively.

*The Constitution stipulates three types of emergencies –

- (i) An emergency due to war, external aggression or armed rebellion (Art. -352).
- (ii) An Emergency due to failure of Constitutional machinery in the state (Art. - 356).
- (iii) Financial Emergency due to a threat to the financial stability or credit of India (Art. - 360).

*During an Emergency, the Central government becomes all

powerful and the States go into total control of the centre.

*Under **Article 352**, the President can declare a national emergency **when the security of India or a part of it** is threatened by war or external aggression or armed rebellion.

*The Proclamation of Emergency must be approved by both the Houses of Parliament within one month from the date of its issue. *If the proclamation of emergency is issued at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place during the period of 1 month without approving the proclamation, then the proclamation survives for 30 days from the **first sitting** of the Lok Sabha after its reconstitution, provided that the Rajya Sabha have in the meantime approved it. *If approved by both the houses of Parliament the emergency continues for **6 months** and extends to an indefinite period with a special majority of the Parliament for **every six months**.

*During a National Emergency, the Parliament becomes empowered to make laws on any subject mentioned in the state list. *The laws made by Parliament on State subjects become inoperative six months after the emergency has ceased to operate. The President can issue ordinance on state subjects also if the Parliament is not in session.

*According to Article 354 (1) while the proclamation of National Emergency is in operation, the **President can modify** the Constitutional distribution of revenues between the centre and the States. *According to Article 83 (2), while a proclamation of National Emergency is in place, the life of the **Lok Sabha may be extended beyond its normal term (5 years) by a law of Parliament for one year at a time** (for any number of time). *However this extension cannot continue beyond a **period of six months**, after the emergency has ceased to operate.

*Articles 358 and 359 describe the effect of a National Emergency on **Fundamental Rights**. **Article 358** deals with the suspension of the Fundamental Rights guaranteed by Article 19 due to war or external aggression. No separate order for their suspension is required. ***Article 359 deals with the suspension of other Fundamental Rights** (Except those guaranteed by Article 20 & 21). *Article 359 authorises the President to **suspend the right to move any court** for the enforcement of Fundamental Rights during a National Emergency. *The **National Emergency** has been proclaimed 3 times so far – **in 1962, 1971 and 1975**.

*The President Rule under **Article 356** is imposed in case of failure of **Constitutional machinery in the state**. ***Notably in the case** of the President's Rule the President can act either on a report of the Governor or otherwise too (i.e even without the Governor's report). *Under this arrangement the President acquires all the powers of the state government concerned. *The President dismisses the state council of ministers headed by the Chief Minister. *During this time the Parliament passes the state legislative bills and the state budget. *A Proclamation imposing Presidential Rule must be approved by both the houses of the Parliament within two months from the date of its issue. *If approved by both the Houses of the Parliament the President's rule continues for 6 months. *It can be extended for a maximum period of 3 years with the approval of the Parliament, every six months. *Every resolution approving the proclamation of President's Rule or its continuance can be passed by either house of the Parliament only by a simple majority.

***Article 360** of the Indian Constitution deals with Financial Emergency. *Article 360 empowers the President to proclaim a Financial Emergency if he is satisfied that a situation has arisen due to which the financial stability or credit of India or any part of its territory is threatened. *A proclamation of financial emergency must be approved by both the Houses of Parliament within two months from the date of its issue. *Once approved by both the Houses of the Parliament, the financial emergency continues indefinitely till it is revoked. *During a financial emergency, the centre acquires full control over the States in financial matters. *No financial emergency has been declared so far.

*K.M Nambiar while criticising the emergency powers of the President called it is “a fraud on the Constitution.” *The phrase ‘armed rebellion’ was inserted by the **44th Amendment Act of 1978**, replacing the original phrase ‘internal disturbance.’ *According to Article 355, it is the Duty of the Union to protect States against external aggression and internal disturbances.

1. How many types of emergencies have been envisaged under the Indian Constitution?

- (a) Two
- (b) Three
- (c) Four
- (d) One

U.P.P.C.S. (Mains) 2009, 2014

Ans. (b)

There are three types of Emergencies envisaged under the Indian Constitution-

- (1) National Emergency under the Article 352;
- (2) State emergency declared on failure of Constitutional machinery in a State under Article 356;
- (3) Financial emergency under Article 360.

2. Under which Article of the Constitution it is the responsibility of the Indian Government to protect States from external aggression and internal disturbance?

- (a) Article 355 (b) Article 356
(c) Article 352 (d) Article 360

U.P.P.C.S. (Pre) 2001

Ans. (a)

Article 352- If the President is satisfied that a grave emergency exists, whereby the security of India or any part of the Territory thereof is threatened, whether by war or external aggression or armed rebellion, then the President may by Proclamation make a declaration of Emergency.

Article 355- It shall be the duty of the Union to protect States against external aggression and internal disturbance.

Article 356- If the President, on receipt of report from the Governor of the State or otherwise, is satisfied that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution, then the President may declare the State under the President's Rule.

Article 360- If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or any part of the Territory thereof is threatened, he may by a Proclamation make a declaration of Financial Emergency.

3. Which one of following Articles of the Indian constitution provide that It shall be the duty of the Union to protect every state against external aggression and internal disturbance ?

- (a) Article 215 (b) Article 275
(c) Article 325 (d) Article 355

I.A.S. (Pre) 2003

Ans. (d)

See the explanation of the above question.

4. According to which Article 'National Emergency may be declared by the president of India?

- (a) Article 352 (b) Article 370
(c) Article 371 (d) Article 395

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

See the explanation of the above question.

5. The President of India may declare the National Emergency if there is the threat of:

1. External aggression
2. Internal disturbances

3. Armed rebellion

4. Communal clashes

Select the correct answer from the code given below:

Code :

- (a) 1 and 2 only (b) 2 and 3 only
(c) 3 and 4 only (d) 1 and 3 only

U.P.P.C.S. (Mains) 2010

U.P.P.S.C. (GIC) 2010

Ans. (d)

Under Article 352 of the Constitution if the President is satisfied that a grave emergency exists, whereby the security of India or any part of the Territory thereof is threatened, whether, by war, external aggression or armed rebellion, he can declare the National Emergency. The word 'Internal disturbance' has been replaced by 'Armed rebellion' in 44th Constitutional Amendment Act, 1978 of the Constitution.

6. Which one of the following is not a basis to declare National Emergency in India?

- (a) War (b) External attack
(c) Threat to internal peace (d) Armed rebellion

U.P.R.O./A.R.O. (Pre) 2016

U.P.P.C.S. (Mains) 2016

Ans. (c)

See the explanation of the above question.

7. The President can declare National Emergency on the basis of –

- (a) Armed rebellion
(b) External Aggression
(c) War
(d) All above mentioned reasons

46th B.P.S.C. (Pre) 2002

Ans. (d)

See the explanation of the above question.

8. Under which of the following circumstances can the President declare Emergency?

1. External Aggression
2. Internal Disturbances
3. Failure of the Constitutional Machinery in States
4. Financial Crisis

Chose the correct answer from the codes given below –

- (a) 1, 2 and 3 (b) 1, 3, and 4
(c) 2, 3 and 4 (d) 1, 2, and 4

U.P.P.C.S. (Mains) 2007

Ans. (b)

Under Article 352, the President can declare a National Emergency in the case of war, external aggression or armed rebellion. Under Article 356, the President's Rule in case of failure of Constitutional machinery in States and under Article 360 could declare a financial emergency in case of economic crisis. However national emergency can be declared only on the occurrence of such situations as provided in Article 352 but looking at the nature of the options the most appropriate answer is option (b).

9. According to Article 352 of the Constitution, the National Emergency can be declared in which among the following circumstances?

- (a) The failure of the Constitutional machinery
- (b) Invasion
- (c) Internal disturbance
- (d) War, external aggression or armed rebellion

U.P.U.D.A./L.D.A. (Pre) 2002

Ans. (d)

See the explanation of the above question.

10. Under Art. 352 of the Constitution of India, an emergency can be declared if security of any part of India is threatened by

- 1. War
- 2. External aggression
- 3. Armed rebellion
- 4. Internal disturbance

Select the correct answer from the codes given below:

Codes :

- (a) 1 and 2 only
- (b) 2, 3 and 4
- (c) 1, 2 and 3
- (d) 1, 3 and 4

U.P. P.C.S. (Mains) 2017

Ans. (c)

See the explanation of the above question.

11. Under whose advice can the President of India declare Emergency under Article 352?

- (a) Chief Ministers of all States
- (b) Prime Minister
- (c) Union Cabinet
- (d) Council of Ministers

M.P.P.C.S. (Pre) 2024

Ans. (c)

According to the Article 352(1), if the President is satisfied that a grave emergency exists, or there is an imminent danger (before actual existence of threat), where by the security of India or of any part of the territory is threatened, whether by war or external aggression or armed rebellion, he may

by proclamation, make a declaration to that effect in respect of the whole of India or of such part of the territory thereof as specified in the Proclamation. Under Article 352(3), The President shall not issue a Proclamation under Article 352(1) or vary a Proclamation unless the decision of the Union Cabinet in that regard is communicated to him in writing. Hence, option (c) is the correct answer.

12. Given below are two statements, one is labelled as Assertion (A) and the other as Reason (R).

Assertion (A) : Article 352 of the Indian Constitution deals with the declaration of an emergency.

Reason (R) : An emergency may take place at any time.

Select the correct answer from the codes given below :

- (a) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
- (b) (A) is false, but (R) is true.
- (c) Both (A) and (R) are true and (R) is the correct explanation of (A).
- (d) (A) is true, but (R) is false.

U.P.P.C.S. (Pre) 2024

Ans. (a)

The Article 352 of the Indian Constitution is related to the Proclamation of Emergency. According to this Article, If the President is satisfied that a grave emergency exists whereby the security of India or of any part of the territory thereof is threatened, whether by way or external aggression or armed rebellion, he may, by proclamation make a declaration to that effect in respect of the whole of India or of such part of territory there of as may be specified in proclamation. A proclamation of emergency can also be made before actual occurrence of the above mentioned threatening conditions, if President is satisfied that there is imminent danger. In fact, An emergency may take place at any time due to war, external aggression or armed rebellion. Hence, (A) and (R) both are correct, but (R) is not the correct explanation of (A).

13. Which Article of the Indian Constitution deals with the proclamation of Emergency?

- (a) Article 360
- (b) Article 365
- (c) Article 356
- (d) Article 352

70th B.P.S.C Re-Exam 2024

Ans. (d)

According to Article 352 of the Constitution, if the President is satisfied that a grave emergency exists, or is imminent, due to war, external aggression, or armed rebellion, threatening the security of India or any part of its territory, then the President can proclaim a state of emergency for

the entire country or any part of it. Under Article 356, if the constitutional machinery in a state fails, the President can impose President's Rule in the state. Similarly, under Article 360, the President can proclaim a financial emergency. Article 365 deals with the failure of a state to comply with directions issued by the Union, addressing situations where the state fails to meet its obligations.

14. What is correct about external emergency as per Article 352?

- i. It is proclaimed by the President.
- ii. It should be approved by Parliament within two months.
- iii. It should be approved by Parliament within one month.
- iv. It should be approved by Parliament by simple majority.
- v. It should be approved by Parliament by 2/3 majority.
- vi. It can be revoked by simple majority of Parliament.
- vii. It can be revoked by 2/3 majority of Parliament.
- viii. It can be approved in joint session of Parliament.

- (a) i ii iv viii (b) i iii vi viii
(c) i iii v vi (d) i iv vii viii
(e) None of the above

Chhattisgarh P.C.S. (Pre) - 2017

Ans. (c)

Under Article 352, the President can declare a National Emergency. The Proclamation of Emergency must be approved by both the houses of Parliament within 1 month from the date of its issue. Originally it was two months but was reduced to 1 month by the 44th Amendment Act of 1978. Every resolution of Parliament approving its proclamation or its continuance must be passed by a special Majority i.e. 2/3rd of the members present & voting. It can be revoked by a simple majority.

15. Which one of the following is the time limit for the ratification of an Emergency period by the Parliament?

- (a) 14 days (b) 1 month
(c) 3 months (d) 6 months

U.P.P.C.S. (Pre) 2006

Ans. (b)

A proclamation issued under Article 352 shall be laid before each House of the Parliament and shall cease to operate at the expiration of one month unless before the expiry of said period it has been approved by resolution of both Houses of Parliament.

16. A Proclamation of Emergency must be placed before the Parliament for its approval –

- (a) Within one month (b) Within two months
(c) Within six months (d) Within one year

U.P.P.C.S. (Mains) 2003, 2004

Ans. (a)

See the explanation of the above question.

17. The Provisions regarding division of taxes between the Union and the States –

- (a) Can be suspended during Financial Emergency.
(b) Can be suspended during National Emergency
(c) Cannot be suspended under any circumstances.
(d) Can be suspended only with the consent of a majority of the State Legislatures.

Chhattisgarh P.C.S. (Pre) 2011

Ans. (b)

The provisions under Article 268 to 281 relating to the distribution of taxes between the Union and the States, can be, suspended by the President's order at the time of National emergency subject to specific modification as required by the order as provided in Article 354(1) of the Constitution of India.

18. Under which of the following articles the President of India can suspend the enforcement of Fundamental Rights (except Articles 20, 21)?

- (a) Article 358 (b) Article 359
(c) Article 13 (d) Article 356

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (b)

According to Article 359 of the Indian Constitution, the President of India can suspend the enforcement of the Rights conferred by Part III (Fundamental Rights) except Articles 20 and 21. The President may by order declare the rights conferred by Part III (except 20 & 21) and right to move any court to enforce the rights shall remain suspended. Whereas Under Article 358 after 44th Amendment, Article 19 shall be suspended, if any part of the territory is threatened by war or external aggression.

19. The President of India has the power to suspend the

- (a) Fundamental Rights
(b) Fundamental Rights described in Article 21
(c) Fundamental Rights described in Article 21-A
(d) Fundamental Rights described in Article 19

U.P. Lower Sub. (Pre) 2015

Ans. (*)

The Fundamental Rights described in Article 19 are automatically suspended under Article 358 when an emergency is declared on the basis of war or by external aggression under Article 352. Whereas, the President has the power to suspend the right to move any court for the enforcement of the other Fundamental Rights including Article 21(A) under Article 359. It is noteworthy that the Fundamental Rights obtained under Article 20 and 21 can not be suspended in any case. Also, Article 19 is not automatically suspended in case of declaration of Emergency due to Armed Rebellion, but then the President suspends it under Article 359. Thus, two correct answers, c and d, are received for this question.

Note : It is noteworthy that this is the reason why the Public Service Commission had excluded this question from evaluation.

20. Which one among the following pairs of Articles relating to the Fundamental Rights cannot be suspended during the enforcement of Emergency under Article 359 of the Indian Constitution?

- (a) Articles 20 and 21 (b) Articles 14 and 15
(c) Articles 16 and 17 (d) Articles 24 and 25

U.P.P.C.S. (Mains) 2009

Ans. (a)

See the explanation of the above question.

21. Which of the following Articles cannot be suspended during the national Emergency?

- (a) Articles 14 and 15
(b) Articles 19 and 20
(c) Articles 21 and 22
(d) Articles 20 and 21

U.P.P.C.S. (Pre) 2015

Ans. (d)

See the explanation of the above question.

22. During National Emergency the term of the House of People –

- (a) Cannot be extended.
(b) Can be extended till the Emergency lasts.
(c) Can be extended for one year only.
(d) Can be extended till Emergency lasts but only by one year at a time.

U.P.P.S.C. (GIC) 2010

Ans. (d)

During the Proclamation of National Emergency under Article 352, the duration of Lok Sabha under Article 83(2), may be extended by Parliament by law. However such period shall not exceed one year at a time and not extending in any case beyond a period of 6 months after the Proclamation has ceased to operate.

23. The term of a State Legislative Assembly can be extended during Emergency by–

- (a) The President
(b) The Parliament
(c) The Governor of State
(d) The State Legislature

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (b)

According to proviso of Article 172(1), while a Proclamation of Emergency is in operation, the duration of a State Legislative Assembly may be extended by the Parliament by law for a period not exceeding one year at a time and not extending in any case beyond a period of six months after the Proclamation has ceased to operate.

24. On which of the following dates President of India, using his powers, declared by proclamation that a grave emergency existed where the security of India was threatened by internal disturbance?

- (a) 26 October, 1962 (b) 3 December, 1971
(c) 25 June, 1975 (d) 26 June, 1975

R.A.S/R.T.S (Pre) 2018

Ans. (c)

This Emergency refers to a 21-month period from 1975 to 1977 when Prime Minister Indira Gandhi had a state of Emergency declared across the country.

Officially declared by President Fakhruddin Ali Ahmed under Article 352 of the Constitution because of Prevailing "internal disturbances. The Emergency was in effect from 25 June 1975 until it was withdrawn on 21 March 1977.

Originally, the Constitution mentioned 'internal disturbances' as the third ground for the proclamation of National Emergency, but the expression was too vague and had a wider connotation.

Hence the 44th Amendment Act of 1978 substituted the word 'armed rebellion' for internal disturbances.

Thus it is no longer possible to declare a National Emergency on the grounds of internal disturbances as was done earlier in 1975.

25. Statement : Constitution of India is basically Federal in nature.

Reason : Article 352 has provisions to deal with the failure of constitutional machinery in a state.

- (a) Statement and Reason both are correct, and the Statement is the correct explanation of the reason.
- (b) Statement and Reason both are correct, but the statement is not the correct explanation of reason.
- (c) The statement is correct, but Reason is false.
- (d) The statement is false, but Reason is correct.

M.P.P.C.S. (Pre) 2008

Ans. (c)

The Indian Constitution is regarded as federal as well as a combination of unitary and federal elements. Article 352 provides that the President of India, if satisfied, that the security of India or any part of the territory thereof is threatened due to war, external aggression or armed rebellion, can proclaim Emergency, whilst Article 356 provides for the proclamation of the President's Rule if the Constitutional machinery fails in any State of India. Hence statement is correct, but the reason is incorrect.

26. Mainly on whose advice the President's Rule is imposed in the State?

- (a) Chief Minister
- (b) Legislative Assembly
- (c) Governor
- (d) Chief Justice of High Court

45th B.P.S.C. (Pre) 1997

Ans. (c)

Art : 356 : President issue a proclamation if he is satisfied that a situation has arisen in which government of a state cannot be carry on in accordance with the provisions of the constitution. Notably President's can act either on a report of the governor of state or otherwise two.

27. Under which Article of the Indian Constitution President's Rule can be imposed in a State?

- (a) Article 370 (b) Article 368
- (c) Article 356 (d) Article 352

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (c)

See the explanation of the above question.

28. In which of the following States there is no provision for the imposition of Governor's Rule?

- (a) Manipur (b) Mizoram
- (c) Meghalaya (d) Jammu and Kashmir

U.P. Lower Sub. (Pre) 2015

Ans. (*)

According to Article 356 of the Indian Constitution, the President can impose President's rule on the failure of constitutional machinery in the state. Whereas, in view of the special status of Jammu and Kashmir (Article 370) in the Indian constitution, in addition to President's rule, Governor's rule was also made under section 92 of Part 6 of the constitution of Jammu and Kashmir. The separate constitutional system for Jammu and Kashmir has been removed by 'The Jammu and Kashmir Reorganisation Act, 2019'. Now, Jammu and Kashmir is a Union Territories under the Indian Constitution. In the given options there is no provision for Governor Rule in the State of Manipur, Mizoram, and Meghalaya. U.P. Commission did not evaluate this question.

29. If the President of India exercises his power as provided under Article 356 of the Constitution in respect of a particular State, then

- (a) The Assembly of the State is automatically dissolved.
- (b) The powers of the Legislature of that State shall be exercisable by or under the authority of the Parliament.
- (c) Article 19 is suspended in that State.
- (d) The President can make laws relating to that State.

I.A.S. (Pre.) 2018

Ans. (b)

*The Presidents's Rule can be proclaimed on two grounds one mentioned in Article 356 itself and another in Article 365.
* During the President's Rule, the state executive is dismissed and the State legislature is either suspended or dissolved. Hence option (A) is incorrect.

*It has no effect on the Fundamental Rights of the citizens. Hence option (c) is incorrect.

*The Parliament can delegate the powers to make laws for the state to the President or to any other authority specified by him. The President can promulgate an ordinance under Article 123 of the constitution but even then it is subjected to the approval of the House. Hence option (d) is also not appropriate. Thus option (b) is the correct answer.

30. Which of the following are not necessarily the consequences of the proclamation of the President's rule in a State?

- 1. Dissolution of the State Legislative Assembly
- 2. Removal of the council of Ministers in the State
- 3. Dissolution of the local bodies

Select the correct answer using the code given below:

- (a) 1 and 2 only (b) 1 and 3 only
- (c) 2 and 3 only (d) 1, 2 and 3

I.A.S. (Pre) 2017

Ans. (b)

The Proclamation of the President's rule in a State can be made in accordance with the provisions of Article 356 of the Indian Constitution at the instance of failure of constitutional machinery. In the event of the imposition of the President's rule in a State, the President removes the council of Ministers and runs the administration with the help of the Chief Secretary of the State. Besides, the President can dissolve or suspend prorogue of the Legislative Assembly. Dissolution of local Bodies is not a consequence of the proclamation of the President's rule in a state.

31. Consider the following statements regarding Article 356 of the Constitution:

- (i) **Failure of Constitutional Machinery in States is an objective reality.**
- (ii) **A Proclamation under this Article can be reviewed by Supreme Court.**
- (iii) **Along with this Proclamation, State Legislative Assembly can be dissolved.**
- (iv) **This Proclamation has to be approved by each House of Parliament within two months.**

Which of the statement/s given above is/are correct?

- (a) (i), (ii), and (iv) only
- (b) (i), (ii), and (iii) only
- (c) (iii) and (iv) only
- (d) (ii), (iii), and (iv) only

R.A.S./R.T.S.(Pre) 2013

Ans. (a)

In the case of S.R. Bommai Vs. Union of India, 1994, the Supreme Court held that judicial review can be done of the Proclamation of Emergency under Article 356 and the State Legislative Assembly cannot be dissolved with Proclamation until it is approved of by both Houses of the Parliament within two months. The Court further determined that the failure of the Constitutional machinery should be in real not fictitious.

32. President's Rule can be imposed for a maximum period of –

- (a) 1 year
- (b) 2 years
- (c) 6 months
- (d) 3 years

U.P.P.C.S. (Pre) 1992

Ans. (d)

Through the 44th Amendment Act, 1978, the duration of a Proclamation made under Article 356 was limited to a period of one year unless a Proclamation of Emergency under Article 352 was in operation and the Election Commission certified that it was not possible to hold elections to the Legislative Assembly of the State concerned immediately, in which case, it may be extended up to three years by successive resolutions for continuance being passed by both Houses of Parliament.

33. Match List-I with List-II and choose the correct answer from the codes given below :

List-I (State)	List - II (No. of times President Rule has been imposed till 2019)
A. Manipur	(i) 8
B. Uttar Pradesh	(ii) 10
C. Bihar	(iii) 9
D. Odisha	(iv) 6

Codes :

	A	B	C	D
(a)	(iii)	(ii)	(i)	(iv)
(b)	(ii)	(iii)	(i)	(iv)
(c)	(i)	(ii)	(iii)	(iv)
(d)	(iv)	(ii)	(iii)	(i)

Chhattisgarh P.C.S. (Pre) 2020

Ans. (b)

The correct match are as follows :-

State	No of times president rule has been imposed tile 2019
Manipur	10
Uttar Pradesh	9
Bihar	8
Odisha	6

34. Under Article 356 of the Constitution of India, President's Rule was imposed for the first time in –

- (a) Uttar Pradesh
- (b) Travancore-Cochin
- (c) PEPSU
- (d) Bihar

U.P.P.C.S. (Mains) 2010

Ans. (c)

The President's Rule under Article 356 was imposed in 1951 for the first time in former Punjab and in 1953 in Patiala and East Punjab States Union (PEPSU).

35. Consider the following statements in respect of financial emergency under Article 360 of the Constitution of India:

1. **A Proclamation of financial emergency issued shall cease to operate at the expiration of two months, unless, before the expiration of that period, it has been approved by the resolutions of both Houses of Parliament.**
2. **If any Proclamation of financial emergency is in operation, it is competent for the President of India to issue directions for the reduction of salaries and allowances of all or any class of persons, serving in connection with the affairs of the Union but excluding the Judges of the Supreme Court and the High Courts.**